



CHAPTER vi.

An Act to confer further powers upon the Connah's Quay Gas Company Limited and for other purposes.
[24th May 1944.]

WHEREAS the Connah's Quay Gas and Water Company Limited were incorporated under the Companies Acts 1862 and 1867 and by the Connah's Quay Gas and Water Order 1876 confirmed by the Gas and Water Orders Confirmation (Chapel-en-le-Frith &c.) Act 1876 were authorised to supply gas and water within the limits of supply described in that Order: 25 & 26
Vict. c. 89.
30 & 31
Vict. c. 131.
39 & 40
Vict. c. xcii.

And whereas by the Connah's Quay Urban District Council Water Act 1926 the water undertaking of the said Company was transferred to the Connah's Quay Urban District Council: 16 & 17 Geo. 5.
c. xxxvi.

And whereas the name of the Company has since been changed to the Connah's Quay Gas Company Limited:

And whereas it is expedient that the limits for the supply of gas by the Company should be extended as by this Act provided:

And whereas it is expedient that further powers should be conferred upon the Company as provided by this Act:

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

May it therefore please your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords

PART II.

WORKS AND LANDS.

Construction
of gasworks.

19 & 20 Geo. 5.
c. 24.

Limitation
on exercise
of powers.

Extension of
section 4 of
Gas Under-
takings Act
1929.

Power to
purchase lands
by agreement.

5. Subject to the provisions of the Gasworks Clauses Acts 1847 and 1871 as incorporated with this Act the Company may upon the lands described in the First Schedule to this Act erect maintain alter improve and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the limits of supply and may also upon the said lands work up and convert the residual products arising directly or indirectly from the manufacture of gas by them or purchased by them under the powers conferred by section 4 of the Gas Undertakings Act 1929 and for this purpose the Company may purchase from any source and use such material as is required to work up and convert any such residual products.

6. The powers conferred by section 5 (Construction of gasworks) of this Act shall not be exercised until the consent of the Minister of Fuel and Power shall have been given to the exercise thereof.

7. In addition to the powers conferred upon them by section 4 of the Gas Undertakings Act 1929 the Company may purchase and may sell liquid butane or liquid propane or any other similar liquid which is intended to be converted into gas and which is derived from a process other than the process of carbonisation or gasification of coal or coke and may also use such liquid for the enrichment of gas supplied by them.

8.—(1) Subject as in this section provided the Company may for the purposes of the undertaking purchase and take (by agreement but not otherwise) and may hold in addition to the lands described in Schedule A to the Order of 1876 and in the First Schedule to this Act any lands which they may require for those purposes but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the said schedules:

Provided that the total quantity of the lands which the Company may hold for the purposes of the undertaking in addition to the lands described in the said schedules shall not at any one time exceed six acres in the aggregate.

(2) Section 10 (Additional land) of the Order of 1876 is hereby repealed.

9. The Company may purchase or take on lease houses and cottages for employees and offices and showrooms for the purposes of the undertaking and may erect fit up and maintain upon any lands for the time being belonging or leased to the Company any building to be wholly or partly used for the said purposes and may let any part of any such buildings which shall not for the time being be required for the said purposes.

PART II.

—cont.

Dwelling-
houses for
employees
offices
showrooms
&c.

10. The Company may provide maintain and equip grounds for games sports or recreation for the use of the employees and may acquire or take on lease for that purpose any lands in addition to any other lands which they are or may be authorised to acquire.

Recreation
ground for
employees.

11. Nothing in this Act shall authorise the development of any land or the erection of any building or the execution of any works otherwise than in accordance with the terms of any Interim Development Order made under the Town and Country Planning Act 1932 or any enactment repealed by that Act or permission granted under such Order or in contravention of any provision contained in a Scheme made under those Acts or confer any exemption from the provisions of the Town and Country Planning (Interim Development) Act 1943.

Saving for
town and
country
planning.

PART III.

SUPPLY.

12.—(1) The limits within which the Company may supply gas shall extend to and include in addition to the existing limits the following:—

Alteration and
re-definition of
limits of
supply.

So much of the urban district of Connah's Quay as is not within the existing limits:

So much of the urban district of Mold as lies outside a radius of one mile from the clock and drinking fountain at the cross in the town of Mold described in the Mold Gas and Water Act 1867:

In the rural district of Hawarden—

So much of the parish of Hawarden as is not within the existing limits and does not form part of the wards known as the Bretton and Broughton Ward and the Manor and Rake Ward;

The parish of Higher Kinnerton;

The parish of Hope;

So much of the parish of West Saltney as is not within the existing limits;

PART III.
—cont.

In the rural district of Holywell—

The parish of Cilcain;

So much of the parish of Mold Rural as is not within the existing limits and is not within a radius of one mile from the clock and drinking fountain at the cross in the town of Mold described in the Mold Gas and Water Act 1867 and is not within a distance of one mile and a half from the junction of Church Road in the township of Bistre with the Chester and Mold main highway described in the Buckley Gas Order 1889 confirmed by the Gas Orders Confirmation Act 1889;

So much of the parish of Northop as is not within the existing limits.

(2) The Company shall have and may exercise within the said extended limits all and the like powers rights and authorities for and in relation to the supply of gas and shall be subject to all and the like liabilities and obligations in respect thereof as they have may exercise and are subject to within the existing limits.

(3) So much of the parish of Mold Rural in the rural district of Holywell as is comprised within the area described in section 40 (Limits of Act) of the Mold Gas and Water Act 1867 and so much of the urban district of Buckley and of the parishes of Mold Rural and Northop in the said rural district of Holywell and of the parish of Hawarden in the rural district of Hawarden as are comprised within the area described in section 5 (Limits of Order) of the Buckley Gas Order 1889 confirmed by the Gas Orders Confirmation Act 1889 shall cease to be within the existing limits and notwithstanding anything in the Order of 1876 all rights and obligations of the Company with respect to the supply of gas in the said areas shall cease and determine.

(4) On and after the date of the passing of this Act the limits of supply shall be and include the area described in the Second Schedule to this Act.

As to streets
outside limits
of supply.

13.—(1) The Company may for the purpose of supplying gas to the owner or occupier of any premises within the limits of supply exercise with respect to any street or part of a street outside those limits the like powers of breaking up the same for the purposes of laying maintaining inspecting repairing and renewing pipes as are exerciseable by them with respect to streets within the limits of supply subject nevertheless to the observance of the like conditions to those imposed on an exercise of those powers therein.

(2) Nothing in this section shall entitle or require the Company to supply gas to the owner or occupier of any premises outside the limits of supply.

(3) In this section the word "street" includes any square court or alley highway lane road thoroughfare or public passage or place.

14. The Company may on the application of the owner or occupier of any premises within the limits of supply which abut on any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in this Act: Power to lay pipes in private streets.

Provided that the powers of this section shall not be exercised in respect of any street belonging to and forming the approach to any station or depot of a railway company except with the consent of such railway company which consent shall not be unreasonably withheld nor shall the Company in carrying out the works authorised by this section unreasonably obstruct or interfere with the convenient access to any such street and any difference arising between the Company and the railway company shall be determined by arbitration.

15.—(1) If pursuant to the provisions of sections 6 to 12 of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the Company desire to lay or place any pipe or other works in any street laid out and formed but not dedicated to public use and the owner or occupier of the soil or pavement of the street withholds his consent under section 7 of the said Act of 1847 to the laying or placing of the pipe or other works in the street or attaches to his consent terms or conditions which in the opinion of the Company are unreasonable the Company may apply to a court of summary jurisdiction acting for the petty sessional division in which the street is situate to dispense with the consent of such owner or occupier or to amend or annul the terms and conditions attached by the owner or occupier to his consent. Further power to lay pipes in private streets.

(2) If on any such application by the Company the court is of the opinion that the consent of the owner or occupier has been unreasonably withheld or that the terms or conditions attached by the owner or occupier to his consent are unreasonable the court may by order authorise the Company to lay or place such pipe or other works in the street without the consent of such owner or occupier but subject to such terms and conditions (if any) as the court may by the order prescribe and on the making of the order the Company may

PART III.
—cont.

exercise with respect to the street the powers of section 6 of the said Act of 1847 but subject to the provisions of sections 8 to 12 of the said Act of 1847 and to the terms and conditions (if any) prescribed by the order:

Provided that in the application of the provisions of the said sections 8 to 12 of the said Act of 1847 to any street which has been laid out and formed but not dedicated to public use the persons having the control or management of the street shall be deemed to include the authority by whom the street would be maintained or repaired if it became a highway repairable by the inhabitants at large and the notice in writing required by the said section 8 and a copy of the plan referred to in section 9 of the said Act of 1847 shall be served on those persons.

(3) The powers conferred upon the Company by this section shall not be exercised in respect of any street belonging to a railway company except with the consent of the railway company. The said consent shall not be unreasonably withheld and if any difference arises between the railway company and the Company as to whether such consent is in any case unreasonably withheld the difference shall be determined by arbitration. The Company in carrying out the works authorised by this section shall not unreasonably obstruct or interfere with the access to any such street.

Power to lay
pipes for
ancillary
purposes.

16. The Company may within the limits of supply lay down and repair take up relay or renew mains pipes and culverts for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with the undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable to the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof:

Provided that no such main pipe or culvert shall be laid down in any street unless the consent in writing of the persons having the control or management of the street or being responsible for the repair thereof shall first have been obtained but such consent shall not be unreasonably withheld and any difference arising between the Company and such persons shall be determined by arbitration.

As to con-
struction and
placing of
pipes &c.

17.—(1) In order to enable the Company to ensure a satisfactory supply of gas to consumers the Company may if they think fit make a specification with regard to the minimum size and the material of the pipes with the fittings thereof which are to be laid by the owner or occupier of any premises

on those premises either in the first instance or on the occasion of any renewal and different specifications may be made for different classes of premises or for particular premises having regard to the probable maximum consumption of gas thereon at any one time but a specification shall have no force or effect until it has been approved by the Minister of Fuel and Power who before giving such approval shall refer the matter to an independent gas engineer and may if he thinks fit direct such engineer to hold a public inquiry into any proposed specification and to have regard to any representations made to the Minister by any persons who appear to the Minister to be affected by the specification and who attend such inquiry.

(2) (a) The Company shall publish once in the London Gazette and once in each of two newspapers circulating within the limits of supply a notice in a form to be approved by the Minister of Fuel and Power of any application made by them to him for approval of any specification which notice shall specify a place within the limits of supply at which a copy of the proposed specification has been deposited for public inspection and shall contain an intimation that any person affected by such proposed specification may make representations in writing to the Minister within a period to be specified in the notice.

(b) As soon as practicable after the Minister of Fuel and Power has approved any specification the Company shall comply with any directions given to them by the Minister as to the publication or service of copies of the specification as approved or of notice of the giving of such approval.

(c) A copy of every specification approved by the Minister under this section shall be kept for public inspection at the office of the Company and copies of every such specification shall be purchaseable by any person at the said office at the price of sixpence for each copy.

(3) When at any time after any such specification has come into force any such pipe or fittings as aforesaid is or are about to be laid or placed notice thereof shall be given to the Company accompanied by a description of the size and materials of the proposed pipe or fittings and of the purposes for which the gas to be supplied through the same is intended to be used.

(4) The Company shall as soon as practicable after receiving such notice (after making such inspection if any of the said pipe or fittings and of the premises in which the same is or are proposed to be laid or placed as they may deem necessary) intimate in writing to the person giving the notice

PART III.
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their approval or disapproval of the pipe or fittings as complying or not complying with the appropriate specification.

(5) No such pipe or fittings as aforesaid shall be laid or placed unless or until the same shall have been approved as aforesaid and when any such pipe or fittings has or have been laid or placed notice thereof shall be given to the Company and the pipe or fittings shall not be covered over until after the expiration of twenty-four hours from the receipt of such notice by the Company or until the pipe or fittings as laid or placed has or have been inspected and approved by the Company whichever shall first happen.

(6) Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend for the purpose of any such inspection as aforesaid and if the officer is not permitted to make the inspection or if the pipe or fittings is or are not according to the appropriate specification of the Company they may refuse to supply gas to the premises until the provisions of this section have been complied with.

(7) The provisions of this section relating to pipes and the fittings thereof shall not apply to any pipes or fittings belonging to a railway company and laid or placed or intended to be laid or placed in any premises (not being a dwelling-house or premises appurtenant to a dwelling-house) of that company—

(a) elsewhere than between the main of the Company and the meter; or

(b) between such main and the meter unless and except so far as such pipes or fittings are covered over or intended to be covered over.

(8) For the purposes of this section the expression "fittings" includes only the joints angles and connections used in placing or laying pipes.

Relief from
obligation to
supply.

18.—(1) Unless at the date of the demand for any such new or increased supply of gas as is hereinafter referred to the capacity of the distribution works of the Company is in the opinion of an arbitrator appointed as hereinafter provided insufficient to meet (with a reasonable margin) the requirements (as existing immediately before that date) of the consumers in the portion of the limits of supply for which such works have been provided (so far as such requirements could reasonably have been foreseen) the Company notwithstanding anything in any other enactment shall not be obliged to give for any purpose other than lighting or domestic use—

(a) a new supply of gas for the premises of any person demanding such supply at any time after the passing of this Act; or

- (b) an increased supply of gas (other than an increased supply necessitated by any reduction of the declared calorific value);

where the giving of such new or increased supply would render necessary the laying of a new main or the making (as an alternative to the laying of a new main) of any enlargement or alteration of or addition to the distribution works of the Company.

(2) The provisions of this section shall not apply in any case in which the person demanding the new or increased supply (in this section referred to as "the applicant") shall enter into a written contract with the Company—

- (a) to receive and pay for a supply of gas of such minimum quantity and for such minimum period as the Company may reasonably require; or
- (b) to make such payment to the Company (in addition to any payments to be made from time to time for gas supplied to the applicant) as the Company may reasonably require;

(according as the Company may in their discretion determine) in consideration of or by way of contribution towards the expenses to be incurred by the Company in laying such new main or making such enlargement alteration or addition as aforesaid and shall give such security for the payment of all moneys which may become due under the contract as the Company may reasonably demand.

(3) If any question shall arise under the provisions of this section between the Company and the applicant as to the sufficiency of the distribution works of the Company or as to whether such new or increased supply would necessitate the laying of a new main or the making of any such enlargement alteration or addition as aforesaid or as to the reasonableness of the minimum quantity or period or of the payments (in addition to payments for gas supplied) required by the Company or as to the nature or amount of the security demanded by the Company such question shall be referred to and determined by arbitration the arbitrator to be appointed by the Minister of Fuel and Power.

(4) In determining any such question as aforesaid the arbitrator shall have regard to the following among other considerations (that is to say):—

- (a) the total annual quantity of gas required by the applicant the maximum quantity required per hour and the hours of the day during which the Company may be called upon to supply gas to the applicant;

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—cont.

(b) the capital expenditure which the Company would have to incur in the laying of a new main or the making of any enlargement or alteration of or addition to their distribution works as aforesaid in connection with the giving of such new or increased supply; and

(c) how far such capital expenditure may become unproductive to the Company in the event of the cesser of the new or increased supply.

Repairs of gas
piping &c. in
dangerous
condition.

19.—(1) If the Company shall at any time serve notice upon any consumer to the effect that it has come to the notice of an officer or servant of the Company that the internal piping or any gas-consuming appliances or fittings provided in connection with the gas service on such consumer's premises are in such a condition as to be dangerous to any person such consumer shall forthwith carry out such works as may be necessary to remove the cause of danger. If the consumer shall fail forthwith to carry out such works as aforesaid the Company may stop the gas from entering the premises of such consumer by cutting off the service pipe or by such other means as the Company shall think fit. Any expenses lawfully incurred by the Company in cutting off the gas from such premises may be recovered by the Company summarily as a civil debt.

(2) For the purposes of this section the Company shall subject to the provisions of section 21 of the Gasworks Clauses Act 1871 have and may exercise the like powers of entry as are exerciseable under that section.

(3) Nothing in this section shall apply to any internal piping gas-consuming appliance or fitting on the premises (other than a dwelling-house) of any railway company nor shall the powers of this section be exerciseable in respect of such premises.

Cutting off
service pipes
to prevent
leakage of gas.

20. Where any dwelling-house or other building is demolished or appears to the Company to be uninhabitable and the Company have reason to think that a leakage of gas is occurring or is likely to occur they may cut off the service pipe by which gas was supplied to such dwelling-house or building.

Inspection and
testing of
meters.

21.—(1) The Company's inspectors or servants shall at all reasonable times have access to and be at liberty to inspect take off remove test repair and replace gas meters which are the property of the Company and meanwhile to fix a substituted meter on the premises such inspection taking off removal testing repairing and replacing to be done at the expense of the Company.

(2) The expense of changing and testing such a meter which at the request of a consumer has been tested in manner provided by regulations made under section 12 of the Gas Regulation Act 1920 and found to register erroneously to a degree exceeding the degree permissible under the said regulations shall be borne by the Company but if the meter has been found not so to register erroneously shall be borne by the consumer.

PART III.

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10 & 11 Geo. 5.
c. 28.

22. When at the request and for the convenience of any consumer the reading of any gas meter in any premises takes place at a time other than that of the usual periodical reading the Company may levy and recover such charges as they think fit not exceeding one shilling for each such special reading.

Charges for
special reading
of meters.

23. Every gas meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid between the main and the meter shall be placed as near as practicable to the Company's main but within the outside wall of the building and, when any such meter has been placed the person placing the same shall give notice thereof to the Company and thereupon any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend for the purpose of inspecting such meter and building and if the officer is not permitted to make the inspection or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:

Position of gas
meters.

Provided that in the case of any building in connection with which there is provided for the meter outside the building a separate meter house or other accommodation reasonably approved by the Company the meter may be placed in such meter house or other accommodation instead of within the outside wall of the building.

24. If any meter used by a consumer ceases to register the quantity of gas consumed at any premises such cesser shall be deemed in the absence of evidence of any other date to have arisen immediately after the last reading of the meter:

Failure of
meters to
register.

Provided that if the Company and the person to whom the gas is supplied differ as to the quantity consumed such difference shall be determined on the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

PART III.

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Fittings let for
hire not to be
subject to
distress &c.

25.—(1) Any apparatus or fittings let by the Company for hire and marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof—

(a) shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the person in whose possession the same may be; and

(b) shall not be deemed landlords' fixtures notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises.

(2) All fittings supplied by the Company under any hire purchase agreement shall until payment of the final instalment of the purchase money for such fittings be deemed for the purposes of this section to be fittings let for hire by the Company.

For prevention
of improper
use of gas.

26. If any person supplied with gas by the Company improperly uses or deals with the same so as to interfere with the efficient supply of gas by the Company to any consumer the Company may if they think fit cease to supply gas to such person.

Notice to
discontinue
supply of gas.

27. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be given by the consumer personally at the office of the Company or unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Variation of
declared
calorific value.

28.—(1) If at any time the Company intend to alter the declared calorific value in the limits of supply the Company shall by advertisement in the London Gazette and by notice in writing to the Minister of Fuel and Power and to the council of each county and of each borough and urban district within or partly within the limits of supply declare their intention to supply within the limits of supply at the expiration of one month from the date of such notice or at such later date as may be specified in such notice gas of such calorific value as may be declared in such notice and the calorific value as so declared by the Company shall thereafter be the declared calorific value within the limits of supply unless and until varied by subsequent declaration under the provisions of this section:

Provided that this section shall have effect as respects the charges to any particular consumer as from the first reading by the Company of that consumer's meter after the date on

which the alteration of the declared calorific value takes effect and not earlier.

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—cont.

(2) For the purposes of this section "the declared calorific value" means the calorific value of the gas which the Company are for the time being bound to supply under the Connah's Quay Gas (Charges) Order 1929 or under any declaration in force under that Order or this section.

PART IV.

FINANCIAL.

29. The share capital of the Company for the purposes of Capital. the undertaking shall not exceed fifty thousand pounds including any premiums paid in respect thereof.

30.—(1) Subject to the provisions of the Gas Undertakings Sales of shares Act 1934 and of the Companies Act 1929 and save as otherwise expressly provided by this Act all shares issued by the Company for the purposes of the undertaking after the passing of this Act shall be issued in accordance with the provisions of this section. by auction or tender. 24 & 25 Geo. 5. c. 28. 19 & 20 Geo. 5. c. 23.

(2) All shares so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the directors shall from time to time determine:

Provided as follows:—

- (a) Notice of the intended sale shall be given in writing to the clerk of the council of every county borough and urban and rural district wholly or partly included within the limits of supply and to the secretary of the London Stock Exchange at least seven days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply;
- (b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Minister of Fuel and Power not less than twenty-four hours before but not to be opened till after the day of auction or last day for the reception of tenders as the case may be;
- (c) In the case of a sale by auction no lot offered for sale shall comprise shares of greater nominal value than one hundred pounds and a bid (other than the first bid) shall not be recognised unless it is in advance of the last preceding bid;

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—cont.

- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum except that the offer by tender of any holder of share capital of the Company may be accepted in preference to the offer of the same sum by any person not such a holder and preference may in like manner be given to the offer of any employee or of any consumer;
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares which have been so offered for sale and are not sold may be offered at the reserve price in manner prescribed by a resolution passed by the directors to the holders of share capital of the Company and to employees and to consumers in such proportions as the directors may think fit or to one or more of those classes of persons only:

Provided in the case of an offer to holders of share capital that if the aggregate amount of any class of shares applied for shall exceed the amount thereof so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Minister of Fuel and Power stating the total amount of each class of shares sold the total amount (if any) obtained as premium in each case and the highest and lowest prices obtained for each class of share capital.

(5) This section shall not apply to any shares not exceeding nine hundred shares of ten pounds each or nine thousand shares of one pound each as the case may be which the Company may resolve to issue to holders of original shares in consideration of the reduction to five per centum per annum of the maximum dividend payable in respect of such original shares.

Special
provision for
benefit of small
investors.

31. Notwithstanding anything in section 30 (Sale of shares by auction or tender) of this Act but subject nevertheless to the provisions of the Companies Act 1929 the directors may if so authorised by a resolution of a general meeting of the Company reserve a proportion not exceeding one-fourth of each issue of shares for the purposes of the undertaking which but for the provisions of this section would be offered by public auction or tender for exclusive offer in the first instance

to consumers and to employees at such price and upon such terms and conditions as to payment therefor and the payment of dividends thereon until the same become fully paid as the directors may prescribe:

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—cont.

Provided that every allotment of shares under this section shall be at a price not less than the reserve price at which the like class of shares of the same issue shall be offered under the provisions of subsection (2) of the said section.

32. When any shares are to be issued by the Company for the purposes of the undertaking the Company before or in lieu of offering the shares for sale by public auction or tender may with the previous approval of the Minister of Fuel and Power and subject to the provisions of the Companies Act 1929 and to such conditions as he may think fit to impose offer such shares to employees and to consumers at not less than the average price (after due allowance has been made for any enhancement in price by reason of any anticipated dividend) at which according to the books of the Company sales of shares of the same class were effected within the period of six months immediately preceding the date of application by the Company for such approval as aforesaid.

Sale of shares
to employees
and consumers
at a fixed
price.

33.—(1) All money including premiums raised by the issue of share capital of the Company for the purposes of the undertaking and any moneys borrowed by the Company and charged on the undertaking (whether exclusively or otherwise) shall be applied only to purposes of the undertaking to which capital is properly applicable.

Application of
money.

(2) Any sum of money which may arise by way of premium from the issue of share capital of the Company for the purposes of the undertaking shall not be considered as part of the share capital of the Company for the purposes of the undertaking in calculating the prescribed amount.

34. The profits of the undertaking to be divided amongst the holders of share capital of the Company in any year shall not exceed an amount (in this section referred to as "the prescribed amount") calculated at the rate of five pounds in respect of every one hundred pounds of so much of the share capital of the Company for the purposes of the undertaking as may be issued as ordinary share capital and at the rate of dividend (not being a rate exceeding five pounds in respect of every hundred pounds) attaching to so much of the last-mentioned share capital of the Company as may be issued as preference share capital together with any sum by which the profits of the undertaking in a previous year after crediting any amount taken from the reserve fund shall have fallen short of the prescribed amount but such sum in respect of any

Limit of profit.

PART IV.
—cont.

such previous year shall not exceed such part of the prescribed amount for that year as related to the ordinary share capital for the purposes of the undertaking.

Limit of
borrowing
power.

35. The amount of all money borrowed by the Company for the purposes of the undertaking shall not at any time exceed in the whole seventy-five per centum of the aggregate amount of the paid-up share capital for the time being of the Company for the purposes of the undertaking and of any premiums paid in respect thereof and no moneys other than moneys borrowed for the purposes of the undertaking shall be charged on the undertaking whether exclusively or otherwise.

Limit of
interest on
borrowed
money.

36. The Company shall not debit the revenue of the undertaking with interest on any moneys other than interest at a rate not exceeding five per centum per annum (or such higher rate as the Minister of Fuel and Power may approve) in respect of any borrowed moneys applied or required for the purposes of the undertaking.

Renewal fund.

37.—(1) The directors may if they think fit in any financial year of the Company appropriate money out of the revenue of the undertaking as part of the expenditure on revenue account to a fund to be called "the renewal fund" and the annual contribution to and the amount of that fund shall be limited in accordance with the provisions of section 5 of the Gas Undertakings Act 1934.

(2) The renewal fund shall be applicable only to meet expenses in respect of the undertaking requisite for the maintenance and renewal of plant and works (other than expenses incurred in the replacement or removal of plant or works) and shall be so applied from time to time for the purpose of equalising so far as may be the annual charge to revenue in respect of such expenses.

Application of
profits in
excess of
prescribed
amount.

38. If the profits of the undertaking in any year amount to a larger sum than the prescribed amount for that year the excess shall be left at the credit of the profit and loss (net revenue) account of the undertaking and be carried forward to the next following year:

Provided that it shall not be lawful for the Company to carry forward at the end of any year at the credit of the said account any sum exceeding the total of the following amounts (that is to say):—

(a) The prescribed amount for that year (after deduction of any part thereof divided or otherwise appropriated) and any amount required by the Company for

paying any interest on moneys charged on the undertaking which the Company are required to pay but have not paid in respect of that year;

PART IV.
—cont.

(b) An amount equal to the prescribed amount in respect of the next following year; and

(c) An amount equal to the total sum which the Company will be required to pay during the next following year as interest in respect of that year on any moneys charged on the undertaking.

39.—(1) Subject to and in accordance with the memorandum and articles of association of the Company the revenues of the undertaking may be applied for the following purposes:—

Power to grant
pensions &c.

(a) making provision for gratuities pensions and other allowances for employees and the dependants of deceased employees; and

(b) making subscriptions and donations to any fund raised in case of national emergency and to infirmaries hospitals convalescent homes and other institutions and objects and to the benevolent and sick funds of the employees.

(2) In this section the expression "employee" includes a director who is a managing director chief engineer general manager or secretary of the Company employed in connection with the undertaking.

40.—(1) If the Company put in force a scheme enabling persons employed by them or any class of such persons to participate in the profits of the Company any such scheme may enable employees or any class of employees as may be defined in such scheme to participate in the profits of the undertaking as part of the terms of remuneration for the services of any such employee:

Profit sharing.

Provided that no modification alteration or rescission of any such scheme shall without his consent place any employee or former employee who at the date of such modification alteration or rescission is entitled under such scheme to participation in profits in a worse position than he would have been if such modification alteration or rescission had not been made.

(2) Notwithstanding anything in any Act or Order relating to the Company but subject to the provisions of the Companies Act 1929 the directors may if and whenever required by any persons being the trustees under any such scheme so to do issue to the trustees (on behalf of employees participating in the scheme) or to any employee such number of

PART IV.
—cont.

ordinary shares in the share capital of the Company for the purposes of the undertaking as the trustees may specify (being within the limit of the amount of such shares which the Company may for the time being be authorised to issue) without first offering such shares for sale by public auction or tender:

Provided that any shares issued under the provisions of this section shall be issued at the average price at which according to the books of the Company sales of such shares were effected within the period of six months immediately preceding the issue or if there has been only one sale or no sale of such shares within the said period then at the price at which the last sale of such shares was effected making due allowance in each case for any anticipated dividend. The price at which such shares are to be issued shall be determined by the said trustees in accordance with the provisions of this subsection.

(3) The directors may as part of any such scheme pay interest out of the revenue of the undertaking at a rate to be agreed on any savings or other sums of money belonging to an employee and deposited with the Company by him.

(4) In this section the expression "employee" includes a director who is a managing director and a director who is the chief engineer general manager works manager or secretary of the Company employed in connection with the undertaking.

Saving for
emergency
powers of
Treasury.

41. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Acts 1939 and 1940 it shall not be lawful to exercise the powers of borrowing or raising capital conferred by this Act without such consent.

PART V.

MISCELLANEOUS.

For protection
of railway
companies.

42. The following provisions for the protection of the London and North Eastern Railway Company and the London Midland and Scottish Railway Company (each of whom is in this section referred to as "the railway company") shall unless otherwise agreed between the Company and the railway company be in force and have effect:—

(1) In laying down or executing or in effecting the repairs and renewals of any mains pipes or other works of the Company under the powers of this Act upon across over under or in any way affecting the railways lands or property belonging to the railway company or used

or occupied by them for the purposes of their undertaking or the bridges approaches viaducts stations or other works or any level crossings over the railways of the railway company the same shall (except in case of emergency) be done under the superintendence if the same be given and to the reasonable satisfaction of the principal engineer of the railway company and (except in cases of repair) according to plans to be submitted to and in such manner as shall be previously reasonably approved by him and in all things by and at the expense of the Company Provided that if the said engineer shall not express his disapproval of such plans within twenty-one days from the submission thereof he shall be deemed to have approved thereof:

- (2) The Company shall restore and make good the roads over any bridges level crossings and approaches which the railway company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company and all the works matters and things aforesaid shall be constructed executed and done so as not to cause any unnecessary injury to the railways bridges level crossings approaches viaducts stations works lands or property of the railway company or interruption to the passage or conduct of traffic over such railways or at any station or depot thereon:
- (3) If any injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the breakage leakage or failure of any such mains pipes or works (not being due to the acts or defaults of the railway company) the Company shall make compensation in respect thereof to the railway company:
- (4) Any dispute or difference which may arise between the Company and the railway company under this section shall be determined by arbitration.

43. The following provisions for the protection of the River For protection
Dee Catchment Board (in this section referred to as "the of River Dee
catchment board") shall unless otherwise agreed in writing Catchment
between the Company and the catchment board apply and Board.
have effect:—

- (1) Before commencing to carry out any work of laying a gas main or erecting any structure over under or across the Wepre Brook or any other watercourse or drain under the jurisdiction of the catchment board the Company shall submit to the catchment board

PART V.
—cont.

plans and sections of such work for their reasonable approval. If the catchment board do not within twenty-one days after the submission to them of any such plans and sections signify to the Company in writing their approval or disapproval thereof they shall be deemed to have approved thereof:

- (2) Such work shall not be executed otherwise than in accordance with such plans and sections as may be approved by the catchment board or if such approval be withheld as may be determined by arbitration and shall be executed to the reasonable satisfaction of the catchment board.

Authentica-
tion and
service of
notices by
Company.

44. Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary or other officer of the Company for the time being authorised for the purpose in writing by the directors being affixed thereto in writing or in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Recovery of
charges from
persons
removing.

45. If a magistrate be satisfied on complaint by any officer of the Company that any person is quitting or about to quit any premises to which the Company supply gas and has failed to pay on demand any sum which may be due from him to the Company and intends to evade payment of that sum by departing from the said premises the magistrate may (in addition to issuing a summons for non-payment of the sum) issue a warrant under his hand authorising the person named therein to seize forthwith and detain the goods and chattels of the defaulter until the complaint is determined upon the return of the summons.

Recovery of
sums due for
fittings &c.

46. If the Company commence proceedings against any consumer for the summary recovery of any sum due for a supply of gas any other sum due or payable to the Company by the same consumer in respect of the sale or hire of any apparatus or fittings supplied or provided by them for or in connection with the consumption or use of gas or in respect of the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and

may be recovered summarily as a civil debt together with the sum due for the supply of gas provided that the sum so included as aforesaid does not exceed twenty pounds in any one summons.

PART V.
—cont.

47. Proceedings for the recovery of any demand made under the authority of any Act or Order from time to time relating to the undertaking whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in an action founded on contract or tort.

48. Save as otherwise expressly provided by any Act or Order from time to time relating to the undertaking all offences against any such Act or Order and all penalties forfeitures costs and expenses imposed or recoverable thereunder or under any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner:

Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

49. Where the payment of more than one sum by any person is due under the provisions of any Act or Order from time to time relating to the undertaking any summons or warrant issued for the purposes of that Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

50.—(1) The Company shall deliver to the Registrar of Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur a like penalty. Every penalty under this section shall be recoverable summarily.

(2) There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1929 on registration of any document other than the memorandum of association or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding up in England.

PART V.
—cont.
Arbitration.

51. Where under this Act any question or dispute (other than a question or dispute for the determination of which provision is made by the Lands Clauses Acts) is to be referred to or determined by an arbitrator or arbitration the reference shall be subject to the provisions of the Arbitration Acts 1889 to 1934 and except where otherwise provided the arbitrator shall failing agreement be appointed by the President of the Institution of Civil Engineers on the application of either party to the question or dispute after notice in writing to the other.

Costs of Act.

52. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company out of revenue.

The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

ADDITIONAL GAS LANDS.

A piece of land situate in the urban district of Connah's Quay containing by admeasurement 1 acre 2 roods and 28 poles or thereabouts forming part of the enclosure numbered in the said urban district 192 on the 1/2500 Ordnance map (Flintshire sheet X.10 edition of 1912) and bounded on the north by the London Midland and Scottish Railway on the south and west by the stream known as Wepre Gutter and on the east by an imaginary line drawn at right angles to the said northern boundary from a point 40 feet or thereabouts west of the point where the boundary of the said urban district crosses the said northern boundary.

SECOND SCHEDULE.

DESCRIPTION OF LIMITS OF SUPPLY.

The urban district of Connah's Quay.

So much of the urban district of Buckley as is not within a distance of one mile and a half from the junction of Church Road in the township of Bistre with the Chester and Mold main highway described in the Buckley Gas Order 1889 confirmed by the Gas Orders Confirmation Act 1889.

So much of the urban district of Mold as lies outside a radius of one mile from the clock and drinking fountain at the cross in the town of Mold described in the Mold Gas and Water Act 1867.

In the rural district of Hawarden—

The parish of Hawarden except so much thereof as comprises the wards known as the Bretton and Broughton Ward and the Manor and Rake Ward and is not within a distance of one mile and a half from the junction of Church Road in the township of Bistre with the Chester and Mold main highway described in the Buckley Gas Order 1889 confirmed by the Gas Orders Confirmation Act 1889.

The parish of Higher Kinnerton.

The parish of Hope.

The parish of West Saltney.

2ND SCH.
—cont.

In the rural district of Holywell—

The parish of Cilcain.

The parish of Mold Rural except so much thereof as is not within a radius of one mile from the clock and drinking fountain at the cross in the town of Mold described in the Mold Gas and Water Act 1867 and is not within a distance of one mile and a half from the junction of Church Road in the township of Bistre with the Chester and Mold main highway described in the Buckley Gas Order 1889 confirmed by the Gas Orders Confirmation Act 1889.

The parish of Northop except so much thereof as lies within a distance of one mile and a half from the junction of Church Road in the township of Bistre with the Chester and Mold main highway described in the Buckley Gas Order 1889 confirmed by the Gas Orders Confirmation Act 1889.

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